

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Jackie Manginelli	Team: Squad #10	CCRB Case #: 202000071	☒ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☒ Injury
Incident Date(s) Thursday, 01/02/2020 9:00 PM, Thursday, 01/02/2020 10:30 PM	Location of Incident: In front of 30 Rockefeller Plaza and in front of 75 Rockefeller Plaza	18 Mo. SOL 2/16/2022	Precinct: 18
Date/Time CV Reported Sat, 01/04/2020 3:29 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Sat, 01/04/2020 3:29 PM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Jason Brown	30226	950110	MTN PCT
2. POF Atisha Samuel	14987	962772	MTN PCT
3. SGT George Kalogeropoulos	05279	942902	MTN PCT
4. POM Ysmael Ricardo	13374	966302	MTN PCT
5. SGT Jose Santana	04511	904994	TRP BUR

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Amauri Zoquier	23342	927706	CW T TF

Officer(s)	Allegation	Investigator Recommendation
A . SGT Jose Santana	Abuse: In the vicinity of 30 Rockefeller Plaza in Manhattan, Sergeant Jose Santana interfered with § 87(2)(b) use of a recording device.	A . Substantiated
B . SGT Jose Santana	Abuse: In the vicinity of 30 Rockefeller Plaza in Manhattan, Sergeant Jose Santana refused to provide his name to § 87(2)(b)	B . Unsubstantiated
C . POF Atisha Samuel	Abuse: In the vicinity of 30 Rockefeller Plaza in Manhattan, Police Officer Atisha Samuel failed to obtain language interpretation services for § 87(2)(b)	C . Substantiated
D . POF Atisha Samuel	Force: In the vicinity of 30 Rockefeller Plaza in Manhattan, Police Officer Atisha Samuel used physical force against § 87(2)(b)	D . Substantiated

Officer(s)	Allegation	Investigator Recommendation
E . POM Jason Brown	Force: In the vicinity of 30 Rockefeller Plaza in Manhattan, Police Officer Jason Brown used physical force against individuals.	E . Exonerated
F . POM Jason Brown	Force: In the vicinity of 30 Rockefeller Plaza in Manhattan, Police Officer Jason Brown used physical force against § 87(2)(b)	F . Exonerated
G . POM Ysmael Ricardo	Force: In the vicinity of 30 Rockefeller Plaza in Manhattan, Police Officer Ysmael Ricardo used physical force against § 87(2)(b)	G . Miscellaneous - Subject Resigned
H . POM Jason Brown	Force: In the vicinity of 75 Rockefeller Plaza in Manhattan, Police Officer Jason Brown used physical force against § 87(2)(b)	H . Substantiated
I . POM Jason Brown	Discourtesy: In the vicinity of 75 Rockefeller Plaza in Manhattan, Police Officer Jason Brown spoke discourteously to § 87(2)(b)	I . Substantiated
J . POM Jason Brown	Abuse: In the vicinity of 75 Rockefeller Plaza in Manhattan, Police Officer Jason Brown threatened § 87(2)(b) with the use of force.	J . Substantiated
K . SGT George Kalogeropoulos	Force: In the vicinity of 75 Rockefeller Plaza in Manhattan, Sergeant George Kalogeropoulos used physical force against § 87(2)(b)	K . Exonerated
§ 87(2)(g), § 87(4-b)	§ 87(2)(g), § 87(4-b)	§ 87(2)(g), § 87(4-b)
§ 87(2)(g), § 87(4-b)	§ 87(2)(g), § 87(4-b)	§ 87(2)(g), § 87(4-b)
§ 87(2)(g), § 87(4-b)	§ 87(2)(g), § 87(4-b)	§ 87(2)(g), § 87(4-b)

Case Summary

On January 4, 2020, § 87(2)(b) filed this complaint with the CCRB over the phone.

On January 2, 2020, at approximately 9:00 p.m., in the vicinity of 30 Rockefeller Plaza in Manhattan, § 87(2)(b) approached Sergeant Jose Santana, of the Citywide Traffic Task Force, while filming and Sergeant Santana pushed § 87(2)(b) camera (**Allegation A—Abuse of Authority: Interference with recording device: Substantiated**). § 87(2)(b) asked for Sergeant Santana’s name and he allegedly did not provide it and walked away. (**Allegation B—Abuse of Authority: Refusal to provide name: Unsubstantiated**). At approximately 9:30 p.m., § 87(2)(b) who was 12 years old at the time of the incident, was selling balloons. PO Atisha Samuel, of the 18th Precinct, approached § 87(2)(b) and told her that she could not sell balloons there. § 87(2)(b) spoke primarily in Spanish, and PO Samuel did not provide her with language interpretation (**Allegation C: Abuse of Authority: Failed to obtain language interpretation: Substantiated**). PO Samuel arrested § 87(2)(b) grabbed and swung her in a counterclockwise motion, and brought her to the ground (**Allegation D: Force: Physical Force: Substantiated**). PO Samuel and Sergeant George Kalogeropoulos, also of the 18th Precinct, brought § 87(2)(b) to sit at the corner of 50th Street. Sergeant Kalogeropoulos called Police Officer Ysmael Ricardo and Police Officer Jason Brown, both of the 18th Precinct, to the location so that PO Ricardo could interpret in Spanish. PO Ricardo interpreted in Spanish for § 87(2)(b). A crowd formed and individuals who were recording stepped close to the officers, so PO Brown pushed these individuals back (**Allegation E: Force: Pushed: Exonerated**). § 87(2)(b) father, § 87(2)(b) arrived on the scene and Sergeant Kalogeropoulos confirmed that he and § 87(2)(b) would be arrested. At approximately 10:30 p.m., PO Brown and PO Ricardo brought § 87(2)(b) to their vehicle on 51st Street outside of 75th Rockefeller Plaza, in Manhattan, by carrying her toward it (**Allegations F: Force: Dragged/pulled: Exonerated and Allegation G: Force: Dragged/ pulled, Miscellaneous-Subject Resigned**). As PO Ricardo and PO Brown were handcuffing § 87(2)(b) near the police vehicle, § 87(2)(b) approached the officers while recording on his phone. PO Brown pushed § 87(2)(b) several feet backward with his hands and § 87(2)(b) fell onto a metal barricade (**Allegation H: Force: Pushed: Substantiated**). PO Brown said to § 87(2)(b) “You want to come at me again asshole? Come at me again you fucking asshole” (**Allegation I: Discourtesy: Word: Substantiated, Allegation J: Abuse of Authority: Threat of force: Substantiated**). Sergeant Kalogeropoulos pushed § 87(2)(b) back away from PO Brown (**Allegation K: Force: Pushed: Exonerated**). § 87(2)(b)

§ 87(2)(b)

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§ 87(2)(b)

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§ 87(2)(b) received a DAT for Obstruction of Governmental Administration and Disorderly Conduct ((**Board Review 53**)). § 87(2)(b) arrest report was not available to the investigation as she was a minor and § 87(2)(b) did not cooperate with signing an unsealing order. No allegations were pursued pertaining to these arrests as § 87(2)(b) did not cooperate with providing a statement and the video footage did not show any obvious allegations that were within the CCRB’s jurisdiction.

The investigation obtained redacted body-worn camera footage for PO Brown, Sergeant Kalogeropoulos, and PO Ricardo (**Board Review 12-15**). The investigation obtained security footage from Rockefeller Center and the relevant sections will be discussed below (**Board Review**

16-18, 29). The investigation obtained camera footage from § 87(2)(b) and the relevant sections will be discussed below (**Board Review 19-28**). § 87(2)(b) provided a cellphone video to the CCRB (**Board Review 46-47**).

Findings and Recommendations

Allegation A – Abuse of Authority: In the vicinity of 30 Rockefeller Plaza in Manhattan, Sergeant Jose Santana interfered with § 87(2)(b) use of a recording device.

Allegation B—Abuse of Authority: In the vicinity of 30 Rockefeller Plaza in Manhattan, Sergeant Jose Santana refused to provide his name to § 87(2)(b)

§ 87(2)(b) was interviewed at the CCRB on January 29, 2020 (**Board Review 01**). § 87(2)(b) provided a brief phone statement on January 7, 2020 and January 10, 2020 (**Board Reviews 02-03**). § 87(2)(b) provided a brief phone statement on February 19, 2020 and was interviewed at her home in Queens on February 27, 2020 (**Board Review 04, 50**). § 87(2)(b) provided a brief phone statement on March 4, 2020 and was interviewed at 30 Rockefeller Center on March 12, 2020 (**Board Review 05, 51**). § 87(2)(b) provided a brief phone statement on March 2, 2020 (**Board Review 49**). PO Samuel was interviewed remotely over MS Teams on October 27, 2020 (**Board Review 06**). PO Brown was interviewed remotely over MS Teams on October 27, 2020 and March 10, 2021 (**Board Review 07-08**). PO Ricardo was interviewed remotely over MS Teams on November 13, 2020 (**Board Review 09**). Sergeant Santana was interviewed remotely over MS Teams on May 3, 2021 (**Board Review 10**). Sergeant Kalogeropoulos was interviewed remotely over MS Teams on December 18, 2020 (**Board Review 11**).

§ 87(2)(b) did not mention to the investigation that an unknown officer refused to provide his name to him and interfered with his recording device. These allegations were captured on video footage that § 87(2)(b) provided to the CCRB (**Board Review 19, 24**).

Sergeant Santana did not recall § 87(2)(b) approaching him with his camera or pushing § 87(2)(b) camera away. He did not recall § 87(2)(b) asking for his name nor did he recall walking away from § 87(2)(b) when § 87(2)(b) asked for his name. The undersigned played “Video #1” submitted by § 87(2)(b) to the investigation (**Board Review 19, 24**). The video was played from 00:00 until 00:36. The video did not refresh Sergeant Santana’s independent recollection of the incident with § 87(2)(b). Sergeant Santana did not think the video captured him touching § 87(2)(b) camera. Sergeant Santana did not hear § 87(2)(b) ask for his name because there were so many people around at the time and the crowd was very loud.

The first video that § 87(2)(b) provided to the CCRB captured this portion of the incident in its entirety (**Board Review 19, 24**). Two officers approach and speak to § 87(2)(b). PO Zoquier tells him that they are having a conversation. At 00:14, Sergeant Santana tells § 87(2)(b) that he “has to go,” he reaches out towards § 87(2)(b) camera, and § 87(2)(b) camera appears to shake. Sergeant Santana does not tell § 87(2)(b) to back up. § 87(2)(b) asks Sergeant Santana why he touched his camera. The footage does not show him or other officers taking any action to move § 87(2)(b) backward. At 00:30, § 87(2)(b) says, “Sergeant what is your name” while Sergeant Santana has his back to him. Sergeant Santana does not reply and walks away.

The investigation concluded that Sergeant Santana pushed § 87(2)(b) camera due to him putting his hand towards § 87(2)(b) camera and § 87(2)(b) camera immediately shaking afterward, in addition to § 87(2)(b) immediately questioning Sergeant Santana as to why he touched his camera.

According to NYC Administrative Code 14-189 subdivision b, a person may record police activities and maintain custody and control of any such recording and of any property or instruments used in such recording. A person may not engage in actions that physically interfere with an official and lawful police function (**Board Review 30**).

According to NYC Administrative Code 14-189, a claim of unlawful interference with recording police activities is established under this section when an individual demonstrates that he or she recorded or attempted to record police activities in accordance with subdivision b and an officer interfered with such person's recording of police activities. Such interference includes but is not limited to the following actions: preventing or attempting to prevent the recording of police activities (**Board Review 30**).

According to Patrol Guide Procedure 203-29, individuals have a right to lawfully observe and/or record police activity including, but not limited to detentions, searches, arrests, or use of force. Officers may not intentionally block or obstruct cameras or other recording devices when there is no legitimate law enforcement reason to do so. This right to observe and/or record police action can be limited for reasons such as the safety of officers or other members of the public, or when a violation of law is committed by the individual(s) who are observing/videotaping. (**Board Review 31**)

The video did not capture Sergeant Santana or any officers instructing § 87(2)(b) to back up, saying he was too close, or taking any actions to move him back. After interfering with his recording, Sergeant Santana turns his back on § 87(2)(b) and walks away, indicating that § 87(2)(b) was not interfering with any police action. § 87(2)(g)

§ 87(2)(g) It is therefore recommended that **Allegation A be substantiated.**

§ 87(2)(g) video confirmed Sergeant Santana's statement that numerous people were present and making noise at the time this allegation occurred. § 87(2)(g) Additionally, § 87(2)(b) asked Sergeant Santana for his name while his back was turned to him § 87(2)(g) it is recommended that **Allegation B be unsubstantiated.**

Allegation C—Abuse of Authority: In the vicinity of 30 Rockefeller Plaza in Manhattan, Police Officer Atisha Samuel failed to obtain language interpretation services for § 87(2)(b).

Allegation D—Force: In the vicinity of 30 Rockefeller Plaza in Manhattan, Police Officer Atisha Samuel used physical force against § 87(2)(b).

§ 87(2)(b) observed PO Samuel and Sergeant Kalogeropoulos detain § 87(2)(b) A witness to the incident, § 87(2)(b) told § 87(2)(b) that she saw PO Samuel throw § 87(2)(b) to the ground and "drag her" to the corner outside of "Brasserie Ruhmann," however, § 87(2)(b) did not witness PO Samuel throw § 87(2)(b) to the ground or drag her.

§ 87(2)(b) observed, § 87(2)(b) selling balloons near the Christmas tree § 87(2)(b)

§ 87(2)(b) fluently spoke both English and Spanish. PO Samuel approached § 87(2)(b) and said, in English, that she had already told her to stop selling there, that she was not supposed to sell there, and to leave. PO Samuel grabbed § 87(2)(b) by her left-arm and swiftly threw her to the floor. She landed face-first on the ground and onto her knees. When she fell, the items she was holding scattered all over the ground. § 87(2)(b) complained and screamed of pain in her left knee and asked PO Samuel, in Spanish, why she did that and said that she was just trying to help her mother. § 87(2)(b) did not see § 87(2)(b) try to hit or grab PO Samuel nor did she see any other individuals get into a physical altercation with any officers. § 87(2)(b) was speaking some English and some Spanish; however, she was mostly speaking in Spanish. PO Samuel grabbed § 87(2)(b) with both hands and walked her across the street.

§ 87(2)(b) thought that § 87(2)(b) mostly spoke Spanish but that she spoke a little English. As she was being removed from the location, § 87(2)(b) cursed at PO Samuel in English and called the police, “assholes.”

PO Samuel noticed vendors were selling large, clear, light-up, animal-shaped balloons. The officers were told that unlicensed vendors had to be moved from the area as, according to city regulations, unlicensed vendors could not vend on that block. A licensed vendor must wear an identification around their neck that shows that they are a licensed vendor with their vendor ID and tax information. PO Samuel observed § 87(2)(b) vending balloons in the area without a vendor ID around her neck. PO Samuel instructed her to move more than five times and § 87(2)(b) would grunt, suck her teeth, and walk away from PO Samuel, but did not respond in words. § 87(2)(b) would then circle the block and return to Rockefeller Center to continue selling balloons each time after initially leaving. PO Samuel did not remember if § 87(2)(b) said she did not speak English or had difficulty understanding English. PO Samuel decided to issue § 87(2)(b) a C-Summons for illegal vending. PO Samuel asked her for her identification, and § 87(2)(b) told PO Samuel in English that she did not have her ID and that she was not moving. PO Samuel decided to place § 87(2)(b) under arrest. PO Samuel told her to turn around while grabbing her arm to put it behind her back. § 87(2)(b) shook her arm and dragged her body away from PO Samuel. PO Samuel took § 87(2)(b) to the ground by sweeping her foot under § 87(2)(b). PO Samuel did not place § 87(2)(b) into handcuffs because she was by herself and a crowd was forming. PO Samuel held § 87(2)(b) hands on the ground while she waited for other officers to arrive. § 87(2)(b) continued to curse at PO Samuel in Spanish and English. She called PO Samuel a, “Bitch.” At that point, PO Samuel knew that § 87(2)(b) spoke English because she was cursing. PO Samuel did not remember if § 87(2)(b) said any longer phrases in English.

Sergeant Kalogeropoulos stated that when he asked § 87(2)(b) what happened, he realized she primarily spoke Spanish and understood very little English. Neither PO Samuel nor Sergeant Kalogeropoulos knew what § 87(2)(b) was saying. Sergeant Kalogeropoulos called for PO Ricardo, a Spanish speaking officer, to come to the scene to interpret for § 87(2)(b).

PO Ricardo stated that Sergeant Kalogeropoulos, called him over the phone and asked him to come to Rockefeller Center so that he could provide Spanish interpretation. When PO Ricardo arrived, he saw Sergeant Kalogeropoulos and PO Samuel with § 87(2)(b). PO Samuel told PO Ricardo that § 87(2)(b) was selling balloons and that she had asked her not to do that. PO Samuel told PO Ricardo that § 87(2)(b) did not speak any English and that they needed her parents to come so that she could be released to them. § 87(2)(b)

was upset, crying, angry, and cursing. PO Ricardo did not recall if she was cursing in only Spanish or if she was also cursing in English. PO Ricardo interpreted for the officers because § 87(2)(b) spoke primarily in Spanish. She told PO Ricardo that she was selling balloons and that PO Samuel spoke with her and they got into an argument. PO Samuel fell on top of her and she had a scratch. He did not remember if § 87(2)(b) told him that PO Samuel threw her to the ground. PO Ricardo did not recall if § 87(2)(b) told him that she had trouble communicating with PO Samuel.

PO Brown's statement was generally consistent with that of Sergeant Kalogeropoulos and PO Ricardo.

Rockefeller Center security footage captured this portion of the incident in its entirety (**Board Review 17-18, 29**). Between 00:00 and 03:39, people walk around the plaza, including people holding bundles of light-up balloons. At 03:39, a group of people gather around one individual holding a bundle of balloons in the center-left of Rockefeller Plaza. They continue to stand with each other until 06:00. At 06:00, two individuals, determined by the investigation to be § 87(2)(b) and PO Samuel, move to the center of the plaza and appears to physically struggle with each other. At 06:18, § 87(2)(b) falls to the ground. PO Samuel is seen holding onto § 87(2)(b) and PO Samuel swings around and falls to the ground with her. At 06:26, PO Samuel gets up, appears to pick up § 87(2)(b) and swings her around counterclockwise. At 06:30, § 87(2)(b) falls to the ground and the balloons scatter on the ground no longer lit-up. PO Samuel appears to be on top of § 87(2)(b). A crowd appears to move backward and form a circle around PO Samuel and § 87(2)(b).

It was undisputed that PO Samuel did not obtain language interpretation for § 87(2)(b) and no interpretation services were provided until requested by Sergeant Kalogeropoulos. While PO Samuel said that § 87(2)(b) said she did not have her ID, refused to leave, and called her a "bitch" in English, the statements of the other officers and the independent witness indicated that § 87(2)(b) presented as a limited English proficient person. Upon Sergeant Kalogeropoulos's first conversation with § 87(2)(b) he immediately recognized the need for a Spanish interpreter and called PO Ricardo to interpret. PO Ricardo confirmed that § 87(2)(b) primarily spoke Spanish and said that PO Samuel told him she spoke no English. § 87(2)(b) a fluent Spanish speaker, heard § 87(2)(b) say her knee hurt and ask PO Samuel questions in Spanish. § 87(2)(b) also confirmed that § 87(2)(b) spoke mostly Spanish other than cursing in English.

According to Patrol Guide Procedure 212-90, a "Limited English Proficient" person (LEP) refers to those individuals whose primary language is not English and who are unable to effectively read, write, speak, or understand English. When an officer encounters an LEP, and the services of an interpreter are necessary, the officer must determine what language the person speaks, and if a bilingual member of service is available to interpret, they will interpret for the LEP. If a bilingual member of service is not available, and a member of the public is, then the officer must determine whether the individual is willing to interpret and whether their use is appropriate. If a bilingual member of the public is not available, then the officer must utilize their department issued cellphone and call the language line for interpretation services (**Board Review 32**).

§ 87(2)(g)

it is recommended that **Allegation C** be substantiated.

It was also undisputed that PO Samuel brought § 87(2)(b) to the ground while arresting her. PO Samuel said that when she grabbed § 87(2)(b) arm to handcuff her, § 87(2)(b) resisted by shaking her arm and dragging her body away from PO Samuel. PO Samuel then took § 87(2)(b) to the ground by sweeping her foot under § 87(2)(b). § 87(2)(b) described PO Samuel grabbing § 87(2)(b) by her left arm and swiftly throwing her to the floor causing her balloons to scatter all over the ground. § 87(2)(b) then complained of knee pain. Her description of the force was generally consistent with the security footage received from Rockefeller Center, which also showed that members of the crowd did not get involved, but backed away from PO Samuel.

According to Patrol Guide Procedure 221-01 (**Board Review 33**), when appropriate and consistent with personal safety, members of the service will use de-escalation techniques to safely gain voluntary compliance from a subject to reduce or eliminate the necessity to use force. In determining whether the use of force is reasonable, members of service should consider the following: A. The nature and severity of the crime or circumstances, B. Actions taken by the subject, C. The duration of the action, D. The immediacy of the perceived threat or harm to the subject, members of service, and/or bystanders, E. Whether the subject is actively resisting custody, F. Whether the subject is attempting to evade arrest by flight, G. Number of subjects in comparison to the number of MOS, H. Size, age, and condition of the subject in comparison to the MOS, I. Presence of a hostile crowd or agitators.

The witness statements and the security footage showed that § 87(2)(b) a 12-year-old, tried to walk away when PO Samuel grabbed her to arrest her for illegal vending, a non-violent misdemeanor. In response to this resistance, PO Samuel swiftly swung § 87(2)(b) to the ground, injuring her knee. § 87(2)(g)

Therefore, it is recommended that **Allegation D** be substantiated.

Allegation E—Force: In the vicinity of 30 Rockefeller Plaza in Manhattan, Police Officer Jason Brown used physical force against individuals.

No civilians mentioned this allegation to the investigation. It was caught on § 87(2)(b) video of this incident (**Board Review 21, 26**).

PO Brown stated that approximately fifty people surrounded the officers while they were with the arrestees. Some people in the crowd got too close to the officers and they were asked to back up. He might have had his hand up while asking them to move back, but he did not use any physical force on them. There was two or three people who PO Brown asked to back up. The individuals could have been recording at the time, but PO Brown did not remember. If a person was recording police activity, it was fine as long as it was not interfering with police activity.

The third video submitted by § 87(2)(b) to the CCRB was played for PO Brown from 00:15 until 00:32 (**Board Review 21, 26**). PO Brown said that there were ten spectators at the start of the incident but that the crowd continued to grow and attempted to come closer to the officers. PO Brown pushed individuals back who were getting too close, and not listening to instructions to back up. Both individuals that got too close to PO Brown were attempting to walk past him. He remembered telling the spectators several times to back up.

The third video submitted by § 87(2)(b) to the CCRB captured this portion of the incident

(Board Review 21, 26). The video begins with § 87(2)(b) crying and holding onto § 87(2)(b). They are surrounded by PO Samuel, Sgt. Kalogeropoulos, PO Brown, and PO Ricardo. There are two women standing nearby and recording on their cellphones. At 00:17, one of the women stands behind PO Brown and puts her phone between PO Brown and PO Ricardo to film. PO Brown sticks out his arm and says, “How many times do I have to say it, back off.” PO Samuel says, “Stand back.” At 00:23, an individual holding a phone, comes up behind PO Brown and PO Samuel and PO Brown pushes him away.

According to Patrol Guide Procedure 221-01 (Board Review 33), when appropriate and consistent with personal safety, members of the service will use de-escalation techniques to safely gain voluntary compliance from a subject to reduce or eliminate the necessity to use force. In determining whether the use of force is reasonable, members of service should consider the following: A. The nature and severity of the crime or circumstances, B. Actions taken by the subject, C. The duration of the action, D. The immediacy of the perceived threat or harm to the subject, members of service, and/or bystanders, E. Whether the subject is actively resisting custody, F. Whether the subject is attempting to evade arrest by flight, G. Number of subjects in comparison to the number of MOS, H. Size, age, and condition of the subject in comparison to the MOS, I. Presence of a hostile crowd or agitators.

§ 87(2)(g)

Therefore, it is recommended that **Allegations G** be exonerated.

Allegation F—Force: In the vicinity of 30 Rockefeller Plaza in Manhattan, Police Officer Jason Brown used physical force against § 87(2)(b)

Allegation G—Force: In the vicinity of 30 Rockefeller Plaza in Manhattan, Police Officer Ysmael Ricardo used physical force against § 87(2)(b)

§ 87(2)(b) said that PO Brown and PO Ricardo pulled § 87(2)(b) toward the police SUV. Which asked to clarify what specifically he mean, he said that the officers escorted § 87(2)(b) toward the SUV holding her arms and § 87(2)(b) walked with both feet on the ground.

PO Brown escorted either § 87(2)(b) or § 87(2)(b) back to the police vehicle.

PO Ricardo said that he and PO Brown took § 87(2)(b) to the police vehicle. § 87(2)(b) was not complying with walking to the police vehicle by making her body go numb, so PO Brown and PO Ricardo were essentially carrying her to the police vehicle. They took her by her arms and carried her to the police vehicle. He did not recall if her entire body was off the ground. At one point, § 87(2)(b) was kicking her legs. PO Ricardo did not recall getting kicked by her, nor did he recall if PO Brown was kicked by her.

The third video submitted by § 87(2)(b) to the CCRB captured this portion of the incident (Board Review 21, 26). At 11:56, PO Brown returns and speaks with Sergeant Kalogeropoulos. PO Brown and PO Ricardo pick § 87(2)(b) up. PO Brown holds on to § 87(2)(b) on her right arm and PO Ricardo holds her left arm. They walk her in the direction of 51st Street. At 12:11, she is seen kicking her feet as they walk her in the direction of the police car. At 12:28, she is heard crying out against the officers.

According to Patrol Guide Procedure 221-01 (**Board Review 33**), when appropriate and consistent with personal safety, members of the service will use de-escalation techniques to safely gain voluntary compliance from a subject to reduce or eliminate the necessity to use force. In determining whether the use of force is reasonable, members of service should consider the following: Actions taken by the subject, the duration of the action, the immediacy of the perceived threat or harm to the subject, members of service, and/or bystanders, number of subjects in comparison to the number of MOS, size, age, and condition of the subject in comparison to the MOS, and the presence of a hostile crowd or agitators.

§ 87(2)(g)

Therefore, it is recommended that **Allegation F** be exonerated.

DAO confirmed that PO Ricardo was no longer a member of the NYPD as of March 29, 2021 (**Board Review 52**).

§ 87(2)(g)

it is recommended that **Allegations G** be closed as **Miscellaneous-Subject resigned**.

Allegation H— Force: In the vicinity of 75 Rockefeller Plaza in Manhattan, Police Officer Jason Brown used physical force against § 87(2)(b)

Allegation I— Discourtesy: In the vicinity of 75 Rockefeller Plaza in Manhattan, Police Officer Jason Brown spoke discourteously to § 87(2)(b)

Allegation J—Abuse of Authority: In the vicinity of 75 Rockefeller Plaza in Manhattan, Police Officer Jason Brown threatened § 87(2)(b) with the use of force.

Allegation K—Force: In the vicinity of 75 Rockefeller Plaza in Manhattan, Sergeant George Kalogeropoulos used physical force against § 87(2)(b)

§ 87(2)(b) walked towards the officers and arrestees to record the incident. PO Brown pushed § 87(2)(b) by picking him up approximately five feet off the ground and throwing him against a metal barricade. § 87(2)(b) went to § 87(2)(b) Hospital in Manhattan after this incident that same night. He suffered injuries to his head, back, and leg. He did not mention to the investigation that any profanity was used towards him or that Sergeant Kalogeropoulos pushed him back after PO Brown pushed him.

§ 87(2)(b) saw § 87(2)(b) recording a few feet away from the officers. PO Brown, using both hands, pushed § 87(2)(b) on his chest causing him to fall onto a barricade three to four feet from where he was pushed. His head hit the metal barricade when he fell, and he appeared to lose consciousness for a few seconds. § 87(2)(b) did not notice any injuries on § 87(2)(b) at the time, but § 87(2)(b) received medical attention from paramedics who were stationed on 50th Street.

PO Brown said that § 87(2)(b) walked up to the officers and put his arm around the right side of his body near his gun. PO Brown turned around, grabbed him, and pushed him in the chest area with both hands to create distance. § 87(2)(b) tripped over his own feet and fell backwards onto a barrier. He immediately jumped up and yelled something at PO Brown. § 87(2)(b) left the scene. PO Brown did not know if § 87(2)(b) was injured, nor did he notice any injuries on his person. PO Brown did not remember saying to § 87(2)(b) “You want to come at me again asshole?” or “Come at me again you fucking asshole!” He did not remember using any profanity during this

interaction.

PO Brown's body-worn camera was played at 03:01 until 03:36 (**Board Review 12, 15**). He still did not remember using profanity nor did he recognize it as his voice in the video. He was worried that § 87(2)(b) who put his arm around him, was challenging him to, "Come back at him." There was also a large crowd who gathered in the area. PO Brown recalled telling § 87(2)(b) to get back at some point however, he did not recall hearing any other officers use any profanity.

PO Brown's body-worn camera footage captured this portion of the incident in its entirety (**Board Review 12, 15**). At 03:11, § 87(2)(b) approaches the officers and PO Brown turns around and pushes him back on his chest while saying, "Get out of the street." § 87(2)(b) falls several feet backwards and hits metal barricades behind him. PO Ricardo says, "He's under" multiple times. § 87(2)(b) gets up and starts moving towards PO Brown quickly. At 03:16, Sergeant Kalogeropoulos pushes § 87(2)(b) who is wearing an orange hat in the video, back a few feet. PO Brown says, "You want to come at me again asshole?" At 03:33, PO Brown says, "Come at me again you fucking asshole."

The third video provided by § 87(2)(b) to the investigation captured this portion of the incident in its entirety (**Board Review 21, 26**). At 12:50, PO Ricardo handcuffs § 87(2)(b). At 12:52, § 87(2)(b) approaches behind PO Brown while recording. PO Brown turns around and pushes § 87(2)(b) toward a metal barricade. § 87(2)(b) then appears to be laying on top of the metal barricade, stands up, and starts walking towards PO Brown. Sergeant Kalogeropoulos and PO Brown approach § 87(2)(b) while § 87(2)(b) holds him back.

The investigation determined that PO Brown's statement, "Come at me again" was an invitation for § 87(2)(b) to fight him and thus a threat of force.

According to Patrol Guide Procedure 221-01 (**Board Review 33**), when appropriate and consistent with personal safety, members of the service will use de-escalation techniques to safely gain voluntary compliance from a subject to reduce or eliminate the necessity to use force. In determining whether the use of force is reasonable, members of service should consider the following: Actions taken by the subject, the duration of the action, the immediacy of the perceived threat or harm to the subject, members of service, and/or bystanders, number of subjects in comparison to the number of MOS, size, age, and condition of the subject in comparison to the MOS, and the presence of a hostile crowd or agitators.

According to Patrol Guide Procedure 200-02 (**Board Review 34**), officers must value human life, respect the dignity of each individual, and render their services with courtesy and civility. Officers must maintain a higher standard of integrity than is generally expected of others because so much is expected of them.

§ 87(2)(b) closely approached the officers while recording on his phone for a few seconds before PO Brown pushed him back. § 87(2)(g)

§ 87(2)(g) it is recommended that **Allegation H** be substantiated.

§ 87(2)(g) PO Brown was already a considerable distance away from § 87(2)(b) Sergeant

Kalogeropoulou was in between both § 87(2)(b) and PO Brown, and § 87(2)(g) PO Brown had already succeeded in pushing § 87(2)(b) away from the police activity that was taking place, § 87(2)(g)

Therefore, it is recommended that **Allegation I and J** be **substantiated**.

§ 87(2)(g)

Therefore, it is recommended that **Allegation K** be **exonerated**.

§ 87(2)(g), § 87(4-b)

§ 87(2)(g), § 87(4-b)

Civilian and Officer CCRB Histories

- 1 § 87(2)(b)

§ 87(2)(b)

- This is the first complaint to which § 87(2)(b) and § 87(2)(b) have been a party (**Board Reviews 38–40**).
- Sergeant Santana has been a member of the NYPD for twenty-seven years and this is the first complaint he has been subject to.
- Sergeant Kalogeropoulos has been a member of the NYPD for thirteen years and has been a subject in two previous complaints. The first complaint, CCRB Case Number 201113972, was mediation. The second complaint, CCRB Case Number 202004326, is currently open.
- PO Samuel has been a member of the NYPD for four years and this is the first complaint she has been subject to.
- PO Brown has been a member of the NYPD for nine years and he has been a subject in nine previous complaints. § 87(2)(g)
 - CCRB Case No. 201308721 involved allegations of force (physical force) that was exonerated, and abuse of authority (threat of force), offensive language (race) that were unsubstantiated.
 - CCRB Case Number 201704107 involved allegations of force (physical force) that was unfounded, and abuse of authority (refusal to provide name/shield) and discourtesy (word) that were unsubstantiated.
 - CCRB Case Number 201704489 was mediated and involved allegations of abuse of authority (threat to damage/seize property), discourtesy (word), and offensive language (ethnicity).
 - CCRB Case Number 201705038 involved two allegations of force (physical force) that were unsubstantiated and exonerated.
 - CCRB Case Number 201800298 involved an allegation of force (physical force) that closed as complainant unavailable.
 - CCRB Case Number 201800870 involved an allegation of force (physical force) that was closed pending litigation.
 - CCRB Case Number 201807353 involved a complaint of discourtesy (word) that was substantiated. PO Brown received Command Level Discipline A.
 - CCRB Case Number 202004326 involved an allegation of force (nightstick as club) that is currently still open.
- Employment history for PO Samuel, PO Brown, and Sergeant Santana has been requested and will be added to the case file upon receipt.

Mediation, Civil and Criminal Histories

- This case was not suitable for mediation.
- A request for any Notice of Claim regarding this incident has been submitted to the New York City Comptroller's Office. There was no Notice of Claim located for this case (**Board Review 41**).
- § 87(2)(b), [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)], § 87(2)(c)

Squad No.: 10

Investigator: Jackie Manginelli Inv. Jackie Manginelli 05/24/2021
Signature Print Title & Name Date

Squad Leader: Eric Rigie IM Eric Rigie 6/14/2021
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date